

If filed to strike just parts of a complaint, CRC 3.1322(a) requires a motion to strike a part of a complaint to “quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense”.

Defendants did not identify any portions of Plaintiff’s first amended complaint as intended targets of their motion to strike. Instead, they sought to strike the entirety of the first amended complaint.

Motions to strike the entirety of a pleading are typically filed against a complaint filed late, missing a necessary signature or certification, or without having obtained necessary leave of court. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §7:174, pp. 80-81.

Defendants argued that the entire first amended complaint fails to constitute “a statement of the facts constituting the cause of action, in ordinary and concise language”, as required by C.C.P. §425.10(a)(1).

Plaintiff’s first amended complaint is anything but concise. However, it does contain in clear language allegations that Plaintiff never agreed to pay 27.2% annual interest on the financed part of the vehicle purchase, and that his signature on the contract calling for such interest was forged. The court has already found on the demurrer that this states a viable cause of action (not for “fraud”, as identified in the first amended complaint, but for forgery).

While unnecessary allegations can be stricken from a complaint, “matter that is essential to a cause of action should not be struck and it is error to do so.” Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1281.

The court therefore denies Defendants’ motion to strike the entirety of Plaintiff’s first amended complaint.

Defendants have 10 days leave to file an answer to the first amended complaint.

MATTHEW NITTINGER; ET AL. vs. DANIEL WAYNE SAUVAGEAU; ET AL.
Case No. CU25-00844

Defendants K. HENGL, R. HENGL, and SUPERIOR CUSTOM CONSTRUCTION,
LLC’s Motion for Leave to File Cross Complaint

TENTATIVE RULING

The motion for leave to file cross complaint filed by Defendant’s K. Hengl, R. Hengl, and Superior Custom Construction, LLC is GRANTED.

Moving Defendants have sufficiently complied with Rule of Court 3.1110. The NOTICE also states: "A copy of the [Proposed] Cross-Complaint is attached to the declaration of Trevor A. White as Exhibit 1."

While the proposed cross complaint is actually Exhibit 2 to the White declaration, the proposed cross complaint identifies all cross defendants at page 2, lines 1-6.

JPMORGAN CHASE BANK N.A. vs. GIBRAN K. POPYON
Case No. CU25-04202

Plaintiff's Motion to Deem Matters Admitted

TENTATIVE RULING

The Parties are to appear.

At the hearing, the Court's tentative ruling is to grant Plaintiff's unopposed motion to deem matters admitted. Each of the requests in the requests for admissions is deemed to be admitted.

CONSUMERS CREDIT UNION vs. MONIQUE ESTHER ROBINSON
Case No. CU25-11613

Defendant's Motion to Set Aside Default

TENTATIVE RULING

Defendant's unopposed motion to set aside and vacate default is GRANTED.

Department 7 is inviting you to a scheduled ZoomGov meeting.
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<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

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